

record showing that plaintiff made a motion to extend the writs of attachment or that any order extending the writs of attachment was issued before the expiration of the three-year period following the issuance of the writs of attachment. (Code Civ. Proc. ¶ 488.510(b).) Therefore, by operation of law, the writs of attachment have expired. Because the writs of attachment have expired, there are no writs for the Court to quash and setting aside the right to attach order is unnecessary under the circumstances. The motion is therefore **denied as moot**.

18. 9:00 AM CASE NUMBER: MSL21-01934
CASE NAME: LINDSEY CANNON VS. JUSTOURS, INC., A DELAWARE CORP.
***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED COMPLAINT**
FILED BY: CANNON, LINDSEY
TENTATIVE RULING:

This is an alleged class-action suit. In a nutshell, defendant JusTours was in the business of arranging vacation travel (for student spring breaks and the like). Plaintiff alleges that JusTours accepted payment for a large number of such travel plans and then did not deliver the travel. JusTours itself has had its corporate status suspended and is no longer represented by any attorney. Its insurer Scottsdale, however, was granted leave to intervene and now stands as the functional defendant in the case.

Plaintiff Cannon seeks to amend her complaint to add a second alleged class representative, Bautista. The concern here, as Cannon and her counsel candidly acknowledge, is that Cannon has been in a long-term romantic relationship with the son of one of the attorneys serving as class counsel. The plaintiff team is accordingly concerned that there may be problems or disputes with the adequacy of her representation of the class. After investigation to identify other alleged victims of JusTour's wrongdoing, plaintiff has identified Bautista as an additional class representative having no prior connection with Cannon or class counsel.

The motion is **granted**, conditioned on plaintiffs working with defendant for a reasonable stipulated relaxation of the deadlines for a possible summary judgment motion (or, it may be, for an agreement to extend the five-year statute and vacate or move the trial date). Plaintiff may file and serve an amended complaint by the end of this week, April 17. Scottsdale will have 30 days in which to answer. In the meantime, however, plaintiff must live up to its promise to provide all relevant discovery on behalf of Bautista by April 24.

The Conflict Concerns

Scottsdale's initial response amounts to, "what's the big deal?" Scottsdale states that it has no concerns or reservations as to the adequacy of Cannon's representation of the class as class counsel, and hence there is no need to add an additional class representative.

This won't do. The Court has its own independent obligation to ensure the adequacy and independence of a class representative, even if the parties themselves purport to agree on the point. With or without Scottsdales's concession, plaintiff's counsel is quite right in assuming that the Court might well have concerns or reservations as to Cannon's independent capacity to represent the class's interests on such topics as attorney's fees and litigation costs. Conversely, there could be a concern

about class counsel being a bit too generous in proposing a class-representative bonus.

Moreover, the Court is not quite convinced that plaintiff can trust the full good faith of the defense side in not finding subtle ways of using the family romantic relationship to plaintiff's disadvantage. Even if Scottsdale doesn't expressly argue the conflict in opposition to class certification, it is not that hard to imagine the topic being mentioned at trial with a nudge and a wink, so as to suggest to the jury that Cannon is less than perfectly credible, too cozily collusive with the lawyers, or something of that kind.

Amending to Substitute or Add a Class Representative

Plaintiff is right that, in general, the courts will liberally allow amendments in putative or certified class actions to provide for substitute or additional class-representative plaintiffs, where there is or may be some concern or issue with the existing representative(s). The clearest example of this is the "pick-off" scenario, whereby defendants could indefinitely stave off class actions by the tactic of providing the full relief sought to the class representatives only. The same concern, however, can arise more broadly.

California courts regularly allow for the substitution of one class representative for another when the current class representative no longer possesses the required standing to represent the class. See *In re Tobacco II Cases* (2009) 46 Cal.4th 298, 328-329; see also *La Sala v. American Sav. & Loan Assn.* (1971) 5 Cal.3d 864, 872 ("If, however, the court concludes that the named plaintiffs can no longer suitably represent the class, it should at least afford plaintiffs the opportunity to amend their complaint, to redefine the class, or to add new individual plaintiffs, or both, in order to establish a suitable representative."); *Timlick v. National Enterprise Systems, Inc.* (2019) 35 Cal.App.5th 674, 689 (If pre-certification, a defendant offers complete relief to the named plaintiff, and if the court then concludes that the named plaintiff cannot continue to fairly represent the class, "the court should allow an opportunity to amend the complaint to redefine the class or to add additional representatives, and if amendment fails, the court should not dismiss the action without giving notice of the dismissal to the members of the putative class." (citing *La Sala*, 5 Cal.3d 864, 874). In *Best Buy Stores, L.P. v. Superior Court*, a conflict existed because the named class representative was also class counsel. *Id.* (2006) 137 Cal.App.4th 772, 774-775. The Court held that "[d]iscovery to ascertain a suitable class representative is proper," after which the court "should afford [plaintiff] the opportunity to amend his complaint, to redefine the class, or to add new individual plaintiffs, or both, in order to establish a suitable representative." *Id.* at 779 (internal citations omitted)).

Scottsdale's attempts to impeach or distinguish these settled authorities are unconvincing. Scottsdale says that the present concerns over Cannon's adequacy are less serious than (say) in an outright mootness situation such as pick-offs, which is true but insufficient to meet the broader point. It also argues that these cases deal with outright replacement of an existing class representative rather than adding a second one. Whether Cannon will or should continue to serve as a class representative is a problematic topic for future discussion. But with or without Cannon, the need to add Bautista or someone like her is obvious and serious.

It is true, as Scottsdale argues, that plaintiff has been less than impressively diligent in bringing this proposed amendment; the reasons for it have surely been obvious to capable counsel from the start. But the Court can see no bite to Scottsdale's suggestions that there is some kind of gamesmanship

going on. Apart from the timing-crunch considerations to be addressed next, it can see no significant advantage to plaintiff or detriment to defendant from the delays. And conversely, the principal timing concern for defendant has to do with the opportunity to move for summary judgment – and it may fairly be said that defendant, waiting until a trial date has been set and a certification motion is imminent, has itself been pretty damn non-diligent in getting to such a motion (assuming it isn't just bluffing about summary judgment).

Scheduling Issues

The only argument Scottsdale adduces now that has any serious bite to it is that it stands to be caught in a time crunch. Trial is set for August 17, 2026, shortly before the five-year statute runs out. Accordingly, the deadline for filing a summary judgment motion is April 22. Scottsdale says it's unwilling to stipulate to waive the five-year deadline, though it proffers no non-gamesmanship-related reason for such refusal.

Scottsdale's lead argument is that if Bautista is now allowed into the case, Scottsdale will have to seek full discovery from her. But plaintiff offers to ensure that Bautista will provide full interrogatory responses and document production within a week. Scottsdale will presumably want to depose Bautista too. Given that the substance of her claim is basically the same as Cannon's in all but the minor details, however, that is unlikely to be very difficult or to take very long.

Scottsdale's purported concern about summary judgment is more substantial, if taken seriously. Given that this case has been kicking around for years with no such motion having been pursued, and that the case isn't yet to the point of class certification, however, it's not clear how seriously it should be taken. In any event, Scottsdale's full opportunity to seek summary judgment should and can be protected by requiring, as a condition for granting this motion, that plaintiffs agree to a reasonable stipulation to alter the deadline for filing such a motion. (And as for the trial date, while the Court does not question Scottsdale's right to insist on the five-year deadline if it sees fit, the Court observes that if Scottsdale finds this chronological box too confining, it knows where to find the key.)

Law & Motion Add On

**19. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
HEARING ON SUMMARY MOTION RE MICHAEL DEAN VISTNES, MD AND DEAN VISTNES, MD, INC
FILED BY: VISTNES, M.D., MICHAEL DEAN
*TENTATIVE RULING:***

See Line 4 above.